



CHAPTER xli.

An Act for conferring further powers upon the mayor aldermen and councillors of the metropolitan borough of Saint Marylebone with regard to the supply of electricity and for other purposes. [24th June 1904.] A.D. 1904.

WHEREAS by the Saint Marylebone Electric Lighting Order 1901 (in this Act called "the Order of 1901") confirmed by the Electric Lighting Order Confirmation (No. 1) Act 1901 (in this Act called "the Act of 1901") the mayor aldermen and councillors of the metropolitan borough of Saint Marylebone (in this Act called "the Council") were empowered as from the commencement of that Order to supply electrical energy for all public and private purposes in the metropolitan borough of Saint Marylebone:

And whereas by the Act of 1901 the Metropolitan Electric Supply Company Limited (in this Act called "the company") were required to sell and the Council were empowered and required to purchase the Saint Marylebone undertaking and business of the company as defined in that Act (except the offices of the company at No. 16 Stratford Place and the extra high pressure trunk mains of the company) for such purchase money and compensation being a sum in gross and on such terms and conditions as might be agreed upon between the company and the Council or failing such agreement as should be determined by arbitration in manner provided by the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement:

And whereas by the Act of 1901 it is further enacted that from and after the completion of the purchase of the Saint Marylebone undertaking and business of the company the Order

A.D. 1904. of 1901 shall be confirmed and that when the Board of Trade are satisfied that the Council have completed such purchase they shall fix the date for the commencement of the said Order :

And whereas the purchase money and compensation due from the Council to the company for the said Saint Marylebone undertaking and business of the company with the exceptions aforesaid as the same existed on the thirty-first day of December nineteen hundred and one have been determined by arbitration to be the sum of one million two hundred and twelve thousand pounds :

And whereas the company have since the thirty-first day of December nineteen hundred and one expended further capital moneys upon the said Saint Marylebone undertaking the amount whereof up to the thirtieth day of June nineteen hundred and three has been agreed between the Council and the company at sixty-seven thousand two hundred and fifty pounds :

And whereas by a judgment of the Chancery Division of the High Court of the seventh day of August nineteen hundred and three in an action by the company against the Council (1903.—M.—442) it was ordered (amongst other things) that inquiries be made as to whether a good title could be made by the company to certain hereditaments and what abatement should be made from the purchase price by reason of any defect of title and that fifty thousand pounds of the purchase money should be lodged in court as security for such abatement but that the Council should pay to the Company the balance of the said sum of one million two hundred and twelve thousand pounds and the said sum of sixty-seven thousand two hundred and fifty pounds and certain further sums including payments in respect of the company's capital expenditure subsequent to the thirtieth day of June nineteen hundred and three together with interest on a portion of such capital and the plaintiffs' costs in the said action :

And whereas by subsequent orders of the High Court in the same action other sums were ordered to be paid by the Council as in those orders mentioned :

And whereas it is expedient to empower the Council to borrow money for the purpose of paying to the company the several sums due to them from the Council and for the other purposes herein-after referred to :

And whereas under the provisions of the Act of 1901 the powers of the company under the Metropolitan Electric Supply Company

A.D. 1904.

And whereas it is expedient to empower the Council to construct a station for generating electricity upon the lands referred to in this Act and to confer upon them the further powers contained in this Act:

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Council for the purposes herein-after mentioned and such estimates are as follows :—

For the purchase money and compensation due from the Council to the company for the Saint Marylebone undertaking and business as defined in the Act of 1901 (except the offices of the company at number 16 Stratford Place and the extra high pressure trunk mains of the company) for the further sums payable by the Council to the company or into court under the said judgment of the seventh day of August nineteen hundred and three or under any other orders of the High Court in the same action or otherwise and for the payment of the costs charges and expenses of the transfer of the said undertaking (including the costs of the arbitration and of the said action) - - - - - £1,415,000

For paying the cost charges and expenses of the		
Order of 1901 and of the Act of 1901	- -	£1,444

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas an absolute majority of the whole number of the Council at a meeting held on the twenty-ninth day of October nineteen hundred and three after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Marylebone Times a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices

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A.D. 1904. required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the general rate :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the eleventh day of February nineteen hundred and four being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

And whereas a plan of the lands required or which may be taken for the purposes or under the powers of this Act and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the clerk of the peace for the county of London and are in this Act respectively referred to as the deposited plan and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

Short and
collective
titles.

1. This Act may be cited as the Saint Marylebone Electric Lighting Act 1904 and the Act of 1901 and the Order of 1901 and this Act may be jointly cited as the Saint Marylebone Electric Lighting Acts 1901 to 1904.

Incorporation
of Acts.

2. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Order of 1901 have the same respective meanings

unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires— A.D. 1904.

- “The Council” means the mayor aldermen and councillors of the metropolitan borough of Saint Marylebone;
- “The borough” means the metropolitan borough of Saint Marylebone;
- “The town clerk” and “the general rate” mean respectively the town clerk and the general rate of the borough;
- “The County Council” means the London County Council;
- “The company” means the Metropolitan Electric Supply Company Limited;
- “Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture-stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation in Great Britain or of any other local authority as defined by section 34 of the Local Loans Act 1875 but does not include securities of the Council or annuity certificates rentcharges or securities payable to bearer;
- “The Order of 1889” means the Metropolitan Electric Supply Company (West London) Lighting Order 1889 confirmed by the Electric Lighting Orders Confirmation (No. 5) Act 1889;
- “The Act of 1901” means the Electric Lighting Order Confirmation (No. 1) Act 1901;
- “The Order of 1901” means the Saint Marylebone Electric Lighting Order 1901.

GENERATING STATION AND WORKS.

4.—(1) Subject to the provisions of this Act and of section 18 (For protection of telegraphic and telephonic wires) and of all provisions for the protection of the Postmaster-General of the Order of 1901 the Council may upon the lands shown upon the deposited plan and herein-after referred to erect construct maintain and use a station for generating electricity together with such buildings machinery engines works matters or things of whatever description as are required by the Council to enable them to supply Generating station.

A.D. 1904. — electricity and to carry into effect the objects of the Order of 1901 and of the Order of 1889 as amended by the Act of 1901 and of this Act.

(2) The lands herein-before referred to are situate in the borough and are as follows:—

Lands comprising 16,702 square yards or thereabouts bounded on the north by Aberdeen Place and Wharnccliffe Gardens on the north-east by the Regent's Canal on the east by Grove Road on the south by North Street Richmond Street and numbers 5 6 7 and 8 Victoria Place and on the west by Capland Street Salisbury Street number 22 Aberdeen Place and number 5 Victoria Place.

(3) The provisions of section 75 (Undertakers not exempted from proceedings for nuisance) of the Order of 1901 shall not apply in regard to the lands herein-before referred to or to any buildings or works constructed thereon in pursuance of the powers of this Act.

Application
of London
Building
Acts.

5. The provisions of the London Building Act 1894 and of any Act amending the same shall subject to any exemptions therein contained in favour of a local authority having statutory powers for the supply of electricity apply to the erection construction or execution by the Council of any building structure or works on any lands acquired or appropriated under the powers of this Act.

Construc-
tion of lay-
byes &c.

6. The Council may by agreement with the Regent's Canal and Dock Company make maintain and use upon any lands for the time being belonging to them such lay-byes quays wharves and other works and conveniences in connexion with the Regent's Canal as the Council may think necessary for the purposes of this Act or of their electric lighting undertaking.

Appropria-
tion of stone-
yard &c.

7.—(1) The Council may appropriate and use for the purposes of their electric lighting undertaking such of the lands referred to in the section of this Act whereof the marginal note is "Generating station" as belong to them and are used for the purposes of a stoneyard and for other purposes and may appropriate and use for the purposes of a stoneyard and other purposes of the Council such of the lands referred to in the said section as shall not be required for the purposes of their electric lighting undertaking.

(2) If in pursuance of this section the Council shall appropriate and use any lands for a purpose for which they were not acquired they shall charge the account for which such lands are appropriated

with a reasonable sum by way of purchase money or rent and shall carry that sum to the credit of the fund out of which the lands were acquired. A.D. 1904.

8. Subject to the provisions of this Act the Council may enter upon take and use such of the lands delineated on the deposited plan and described in the deposited book of reference as they may require for the purposes of this Act or of their electric lighting undertaking. Provided that the Council shall not take the lands numbered 20 and 21 on the said plan except by agreement. Power to take lands.

9. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of London for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of London and a duplicate thereof shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate and thereupon the deposited plan and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands in accordance with such certificate. Correction of errors &c. in deposited plan and book of reference.

10. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

11. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

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Power to sell
superfluous
lands.

12.—(1) Subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands so far as such provisions are in each case applicable the Council may sell lease and dispose of any lands acquired by them under this Act and not for the time being required for the purposes thereof or of their electric lighting undertaking.

(2) The provisions of section 56 (Application of capital moneys) of the Order of 1901 shall apply to all capital moneys received by the Council upon the sale lease or disposal of lands in pursuance of this section.

For protec-
tion of Com-
missioners
of Works.

13. The Council shall not except with the approval of the Commissioners of Works erect any generating station or take a supply of energy from any generating station unless the site for a generating station or the generating station from which the supply is to be taken is specified in an Act of Parliament or in an order confirmed by or having the effect of an Act of Parliament Provided that this section shall not apply to any existing generating station or to an extension of an existing generating station or of a station erected upon a site specified as aforesaid.

For pro-
tection of
Regent's
Canal and
Dock Com-
pany.

14.—(1) The Council shall not otherwise than by agreement take or acquire any lands of the Regent's Canal and Dock Company (in this section called "the canal company").

(2) The Council may abstract and utilise such a supply of water from the canal of the canal company as the Council may require for condensing purposes and the Council shall pay to the canal company for the water so taken from the canal such sum as may be mutually agreed between the Council and the canal company or as failing agreement may be settled by an arbitrator to be appointed on the application of either party by the Board of Trade Provided that the water taken by the Council shall be returned to the canal in as pure a condition as when taken from the canal.

For pro-
tection of
keepers and
governors of
Harrow
School.

15. Notwithstanding anything contained in this Act or shown on the deposited plan no shaft shall be erected on any portion of the lands numbered respectively on the deposited plan 16 17 18 20 and 21 without the previous consent in writing of the keepers and governors of the possessions revenues and goods of the Free Grammar School of John Lyon within the town of Harrow-on-the-Hill nor shall any building of a greater height than any wall which the Council may erect along the frontage of Aberdeen Place be erected without such consent as aforesaid on any part of such land within twenty feet of Aberdeen Place.

16. The Council shall not except with the consent of the County Council or except in cases of emergency discharge any condensing water or water used for condensing purposes from any buildings or works erected executed or maintained under the powers of this Act into any of the sewers of the County Council or into any pipe conduit or drain directly or indirectly communicating therewith.

A.D. 1904.

Restriction
on discharge
of condens-
ing water
into sewers.

FURTHER PROVISIONS AS TO SUPPLY OF ELECTRICITY.

17. Section 3 of the Fourth Schedule to the Order of 1889 and section 1 (b) of the Fourth Schedule to the Order of 1901 are hereby repealed and the Council may at their option charge any consumer by the actual amount of energy supplied to him at the following rates per quarter (that is to say) For any amount not exceeding the equivalent of two hundred hours of supply at the maximum power at which energy shall have been supplied to him at any time during such quarter at a rate not exceeding eightpence per unit and for any further amount exceeding the equivalent of two hundred hours of supply at such maximum power at a rate not exceeding twopence per unit Provided that—

Power to
charge
according to
maximum
demand.

- (1) If the amount of energy supplied to any consumer shall in any quarter be less than fifteen units the Council may nevertheless charge a sum of ten shillings for the energy so supplied;
- (2) If in any year the average price of all energy supplied by the Council shall exceed sixpence per unit the Council shall in the next following year and thereafter as often as need be make such a rateable reduction in both or either of the rates of charge under this section as in their judgment will reduce the said average price to not less than sixpence per unit;
- (3) The Council shall not show any undue preference to any person under this section and shall make the same charges thereunder to all persons under similar circumstances.

18. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 or in the Order of 1889 or in the Order of 1901 a person shall not be entitled to demand from the Council a supply or the continuance of a supply of electrical energy for premises having a separate supply unless he shall have previously agreed to pay to the Council such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by them

Supply of
energy to
premises
having a
separate
supply.

A.D. 1904. to meet the possible maximum demand for those premises and the sum to be so paid shall be determined in default of agreement by arbitration under the Electric Lighting Act 1882.

Council may refuse to supply electrical energy in certain cases.

19. The Council may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear whether any such payments be due to the Council in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

Power to supply electric fittings. Exemption of fittings from distress.

20.—(1) The Council may provide sell let for hire and fix set up alter repair and remove (but shall not manufacture) lamps meters electric lines fittings motors apparatus and things for lighting and motive power and for all other purposes for which electrical energy can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electrical energy (in this Act referred to as "fittings") and may provide all materials and do all works necessary or proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such fittings and for securing their safety and return to the Council as the Council may think fit or as may be agreed upon between them and the person to or for whom the same are sold let fixed set up altered repaired or removed.

(2) The Council may enter into and carry into effect contracts for the execution of any of the powers of this section including the wiring of private property but they shall not themselves execute the wiring of private property except between the main of the Council and the consumer's meter.

(3) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent nor be liable to be taken in execution under any process of any court or any proceeding in bankruptcy against the persons in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Council as the actual owners thereof.

(4) Any moneys received by the Council under this section shall be applied in manner provided by section 55 (Application of revenue) or section 56 (Application of capital moneys) of the Order of 1901.

Byelaws with respect to electric fittings.

21.—(1) The Council may make byelaws with respect to wires apparatus and fittings in any building or premises supplied with electrical energy by the Council and required or used for

the purpose of such supply and there may be annexed to any breach of such byelaws penalties (not exceeding the sum of five pounds for each offence) to be recovered in a summary manner as the Council may think necessary Provided always that no such byelaws shall have any force or effect unless and until they have been confirmed by the Board of Trade and published in such manner as that Board may direct and an opportunity shall be given to the County Council to make representations or objections with reference to any such byelaws before the same are confirmed as herein provided. A.D. 1904.

(2) A copy of any byelaws made under this section signed and certified by the town clerk to be a true copy and to have been duly confirmed and published shall be evidence until the contrary is proved in all legal proceedings of the due making confirmation publication and existence of such byelaws without further or other proof.

22. Notwithstanding anything contained in section 9 of the Electric Lighting Act 1882 the annual statement of accounts of the electric lighting undertaking of the Council shall be filled up on or before the thirtieth day of June in every year and shall be made up to the thirty-first day of March next preceding and the said section 9 shall be read and have effect as regards the undertaking of the Council as if the thirtieth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December. Alteration
of date for
filling up
annual
accounts.

FINANCE.

23.—(1) The Council may without any authority other than this Act borrow at interest money for the following purposes (that is to say) :— Power to
borrow.

(A) For the purchase money and compensation due from the Council to the company for the Saint Marylebone undertaking and business as defined in the Act of 1901 (except the offices of the company at number 16 Stratford Place and the extra high pressure trunk mains of the company) for the further sums payable by the Council to the company or into court under the said judgment of the seventh day of August nineteen hundred and three or under any other orders of the High Court in the same action or otherwise and for the payment of the costs charges and expenses of

A.D. 1904.
—

the transfer of the said undertaking (including the costs of the arbitration and of the said action) any sum or sums not exceeding in the whole one million four hundred and fifteen thousand pounds ;

- (B) For paying the costs charges and expenses of the Order of 1901 and of the Act of 1901 any sum or sums not exceeding in the whole one thousand four hundred and forty-four pounds ;

and may also with the consent of the County Council subject to appeal in accordance with section 4 subsection (1) of the London Government Act 1899 borrow at interest such money as may be necessary for the following purposes (that is to say) :—

- (c) For the purchase of land for and for the erection and construction of a station for generating electricity under the powers of this Act including the buildings machinery engines lay-byes quays wharves works and conveniences connected therewith or for the purposes thereof and the provision laying down and construction of mains and works for connecting the generating station with the existing mains and the alteration and extension of mains and works ;
- (d) For the provision erection laying down and construction of lamps pillars works and conveniences for the purpose of public lighting ;
- (E) For the alteration of the works and mains of the Council and of any lamps and fittings of consumers of energy consequential upon the alteration of the pressure at which energy is supplied ;
- (F) For the provision fixing and setting up of lamps electric motors and other electric fittings ;
- (G) For paying the costs charges and expenses of this Act as herein-after provided ;

and with the like consent and subject to the like appeal such further moneys as may be required for any of the purposes of this Act or for other the purposes of the electric lighting undertaking of the Council.

(2) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the general rate.

(3) The Council shall pay off all money borrowed by them under this section within the respective periods (in this Act referred to as "the prescribed periods") following:— A.D. 1904.

As to money borrowed for the purposes (A) herein-before mentioned within thirty-eight years from the date or dates of borrowing the same;

As to money borrowed for the purposes (B) within five years from the passing of this Act;

As to money borrowed with the consent of the County Council or with the consent of the Local Government Board on appeal within such period as that Council or Board (as the case may be) may sanction.

24. The following provisions of the Metropolis Management Act 1855 shall so far as applicable and with the necessary modifications and subject to the provisions of this Act extend and apply to moneys which the Council are by this Act authorised to borrow (that is to say):—

Provisions of Metropolis Management Act 1855 as to mortgages to apply.

Section 183 Power to boards and vestries to borrow money on mortgage;

Section 185 Form and register of mortgages;

Section 186 Repayment of money borrowed and payment of interest;

Section 187 Power to borrow to pay off existing securities;

Section 188 Payment of principal and interest may be enforced by the appointment of a receiver;

Section 189 Transfer of mortgages;

Section 190 Sinking fund to be formed for paying off mortgages:

Provided that the last-mentioned section shall for the purposes of this Act have effect as if—

(1) The revenue of the electric lighting undertaking of the Council formed part of the moneys or rates charged by the mortgages;

(2) The words "such equal annual sums as with the accumulations at a rate not exceeding three per centum per annum would be sufficient to pay off within the prescribed period the money for the repayment of which such sinking fund is formed" were substituted for the words "such sum as they think proper not

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being less than two pounds per centum on the amount of the principal moneys secured thereby” ;

- (3) Statutory securities were included in the securities in which the sum set aside and the dividends or interest of the investments may be invested.

Mode of
payment off
of money
borrowed.

25. The Council shall pay off all money borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and subject to the provisions of this Act the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which the payment is made.

Council not
to regard
trusts.

26. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Postpone-
ment of
sinking fund
&c.

27. Notwithstanding anything contained in this Act or in the enactments incorporated therewith or applied thereby it shall not be obligatory upon the Council to make the first payment to the sinking fund or to pay the first instalment of principal for the repayment of money borrowed for the purposes (A) and (C) mentioned in the section of this Act whereof the marginal note is “Power to borrow” until the expiration of three years from the respective dates of borrowing such money.

Protection
of lender
from inquiry.

28. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by the Council of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

29. If the Council pay off any money borrowed by them under this Act otherwise than by instalments or by means of a sinking fund or out of money received on capital account not being borrowed moneys they may re-borrow the same but all money so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the money originally borrowed and the obligations of the Council with respect to the repayment of the loan and to the provisions to be made for such repayment shall not be diminished by reason of such re-borrowing.

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 —
 Power to
 re-borrow.

30. All money borrowed by the Council under the powers of this Act shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable.

Application
 of money
 borrowed.

31. All expenses incurred by the Council under this Act (except such as are to be defrayed out of borrowed moneys or are otherwise provided for) shall be defrayed in the same manner as expenses incurred under the Electric Lighting Act 1882.

Expenses of
 Council
 under Act.

32. Notwithstanding anything contained in section 55 (Application of revenue) of the Order of 1901 the Council may in any year after providing for the sums payable by them under subsections (1) (2) (3) and (4) of that section apply any moneys referred to in that section in constructing providing extending or improving any works for the purposes of their undertaking or in the provision of a depreciation or renewal fund which fund shall be applicable at any time for paying the cost of renewing any part of the undertaking or in constructing providing extending or improving any works for the purposes of the undertaking and pending such application shall be invested in statutory securities.

Application
 of revenue.

33. The undertaking of the Council under the Order of 1889 as applied by the Act of 1901 to those parts of the area of supply under the Order of 1889 which had been transferred by virtue of the London Government Act 1899 to the borough of Hampstead or the borough of Saint Pancras shall subject to any adjustments which may be made by or under the provisions of any Act of Parliament which may be passed during the present or any subsequent session of Parliament be deemed part of the electric lighting undertaking of the Council within the meaning of this Act and of section 55 (Application of revenue) and section 56 (Application of capital moneys) of the Order of 1901.

Undertaking
 under Order
 of 1889 to
 be deemed
 part of un-
 dertaking
 under Order
 of 1901 for
 certain
 purposes.

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Confirming
agreements
for supply
of energy by
company to
Council.

34. Notwithstanding any provision in any Act or Order relating to the company prohibiting the company from supplying electrical energy beyond their areas of supply the company and the Council may respectively carry into effect any agreement made before the passing of this Act for the supply of electrical energy in bulk by the company to the Council.

Annual
statement
and balance
sheet of
accounts.

35.—(1) The Council shall once in every year after the expiration of three years from the commencement of the Order of 1901 cause to be laid before them a statement and balance sheet of the accounts of the electric lighting undertaking drawn up in accordance with the form of accounts prescribed from time to time by the Board of Trade for a local authority under the Electric Lighting Acts 1882 and 1888 and the Council shall thereupon fix annually the charges to be made for the supply of electrical energy in the then ensuing year at such rates (not exceeding the maximum rates specified in the Order of 1901 or in the case of consumers charged in pursuance of the section of this Act whereof the marginal note is "Power to charge according to maximum demand" not exceeding the maximum rates authorised by that section) that so far as is reasonably practicable the revenue for that year shall not be less than the estimated amount of the charges on revenue account and of the charges for interest and sinking fund for that year.

(2) Provided that nothing in this section contained shall prevent the Council from entering into contracts for periods exceeding one year under special circumstances with particular consumers to supply electricity at prices fixed by the contracts.

(3) There shall not be made against the general rate in respect of street lighting or other municipal purposes for which energy shall be employed a charge at any higher rate than that charged to consumers using energy for the like hours of supply.

Costs of Act.

36. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the general rate or out of any money borrowed under the provisions of this Act.

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